ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	178th Commission Meeting
DATE:	05 June 2024
TIME:	02:00 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Final Draft Internal Transfer Policy – Director, DoPS *Director, DoPS presented the final draft Internal Transfer Policy, highlighting the changes incorporated based on the directives of the Commission for final endorsement and implementation with effect from 1 July 2024.*	**Endorsed with the directive to issue Executive Order on the same and publish few copies for institutional reference.**
2	Update on Escrow Account for May 2024 – DoPS *EMD, DoPS apprised the Commission on the Opening balance as Nu.24,930,962.94 and Closing balance as Nu.27,573,893.85 in the Escrow Account as of 31 May 2024.*	**Noted.**
3	Final Draft MoU with the RAA – PPD *PPD presented the draft MoU between the ACC and RAA after incorporating comments and feedback received from the respective agencies.*	**Noted the changes proposed and directed to further enrich the draft with following specific directives:** • **incorporate areas agreed and discussed in the Tripartite Forum.** • **maintain the spirit of the MoU, emphasizing the positive and collaborative relationship currently enjoyed between the two agencies.** • **include follow-up on the minutes of the Tripartite Forum in the next Commission meeting.**
4	Proposal on revised performance target for the DAREs for the FY 2023-2024 – PPD *PPD presented analysis on the staffing and workload of the DAREs vis-à-vis the performance target set for the FY 2023-2024. While the staff strength for the FY was 14, the analysis revealed that, after accounting for holidays, training sessions, as well as staff*	**Approved as proposed.**

	turnover with individuals leaving and joining, the Division effectively had only nine active staff members. Hence, in view of the available resource, PPD proposed to revise the target of eight actionable intelligence projects to six for the FY.	
5	Proposal to revise operational framework for the DARe – DARe *DARe presented the proposal to revise the operational framework for the DARe in keeping with the target of 90% proactive investigations by the end of 13th FYP. The proposal included functional and structural reforms, transforming the work process, workplace, and workforce in keeping with the evolving landscape on corruption in the country. To this, DARe sought directives from the Commission on the following:* • *digital transformative team led by Nim Dorji to work on scripting and automation, standardizing analysis product, and streamline processes, among others;* • *employment of admiralty rating for source/informant verification;* • *time limit for intel projects to be only for those corruption offenses that have occurred within five years;* • *preparedness of surveillance team with mandatory standard tool kit and regular familiarization drill for the team;* • *competency mapping and development, wherever necessary, to ensure agility and cross functional collaboration;* • *capacity development infused with self-directed learning;* • *recruitment of staff in the DARe to be strictly confined to internal transfer only with the preference for officials in the DoI with a minimum of 1.5 years of work experience in investigation in the capacity of team leader.* • *adjustment of current staffing including internal transfer based on the profile of the staff;* • *enhancement of safety and security*	**Commending the comprehensiveness and forward-looking proposal, the Commission endorsed the proposal with following specific directives:** • **establish a digital transformation team within the Division as part of the Innovation Dumra Initiative. This would allow the individuals to develop feasible concepts during their off hours, with supervisors subsequently assessing their scalability and determining the level of engagement required to align with the core mandate, ultimately leading to development of a comprehensive proof of concept.** • **discuss all proposals related to HR during the upcoming HRC meeting and accord full support.** • **remove the specific time limit of 'five years' and instead define as 'being preemptive and forward-looking'. To this effect, develop criteria to prioritize based on the parameters such as emerging issues, feasibility, strategic importance, risks associated with institutionalized gap, among others, with the option to share with the CMD, DoPS, DoPE or drop for those that are beyond the defined scope.** • **discuss budget to organize familiarization drill for surveillance team once the budget for FY 2024-2025 has been approved.** • **explore engaging intelligence officers from other agencies by sharing training opportunities.** - **submit a list of gadgets required for safety and security to the Chairperson.**

	including insurance scheme by adopting multilayered approach; and • *health and well-being initiatives.* *In order to operationalize the above framework, DARe proposed for a retreat towards the end of June 2024 to review and revise the intelligence management & operational manual, guidelines on granting immunity for assisting in the investigation and prosecution of corruption offenses, and witness protection guideline.*	- **ensure communication during operations through VPN.** - **insurance scheme for LEAs and explore options.** - **finalize the manuals and related guidelines before end of June 2024 through a retreat, as proposed, given that some of the senior officials will be leaving the agency.**
6	Proposal to finalize Guideline related to ACRD functions – LD *LD apprised that the initial draft guideline for the ACRD was finalized on 19 March 2024 to be implemented with effect from 1 July 2024. However, during the review conducted on 16 May 2024, it was noted that the draft required further enhancement to fully encompass the functions of the ACRD. Parallel to this, LD apprised that there is need to revise the existing guideline on complaints management to align it with the ACRD and ensure seamless integration between the two. To this, LD proposed for a retreat to ensure dedicated focus in finalizing the above two guidelines.*	**Considering the urgency to finalize the draft and implement with effect from 1 July 2024, Commission endorsed the proposal for a retreat and emphasized to ensure thorough and comprehensive draft.**
7	Proposal from CPIB to host CPIC course in Jan/Feb 2025 – PPD *PPD apprised on the invitation received from the CPIB to attend the upcoming Corrupt Practices Investigation Course (CPIC), which is tentatively scheduled from Jan/Feb 2025 for five months. Additionally, the CPIB proposed whether the ACC would be interested to host a part of CPIC in Bhutan.*	**Endorsed with the following specific directives:** • **convey that Jan/Feb month in Bhutan would be extremely cold for the CPIB team.** • **align intermediate, advanced or expert level training with the CPIC to allow exchanges of expertise and maximize available resources.**
8	Proposal to renew MoU between the ACC & NACC – PPD *PPD apprised on the proposal from the NACC, Thailand to renew the existing MoU, which got expired in 2022, during the upcoming Regional Seminar of the ADB/OECD Anti-Corruption Initiative for Asia and the Pacific. The signing is being proposed a day prior to the Regional Seminar.*	**Endorsed.**
9	Appeal case for non-declaration for income year 2022 – DoPE	**Commission recused Sangay Lhamo from the meeting.**

	ADMD apprised on the appeal received from the Executive Director of Construction Association of Bhutan on behalf of his employee Ms. Papu Maya Yonzon to waive off penalty imposed for non-declaration. *Sangay Lhamo declared her conflict of interest as the appellant was her childhood best friend.* *The appeal stated that Ms. Papu declared on 16 June 2023, 47 days later from the last date for declaration, as she was involved in helping with the last rites for her deceased roommate. Moreover, she did not receive notification as the ADA had resigned during that period. Considering the financial constraints, the appeal requested for complete waiver, with Executive Director personally committing to take full responsibility for any such future oversights. In view of the above and considering the past compliance history, the ADMD recommended, imposing a penalty for the late declaration, calculated at 47 days of daily minimum wage rate.* *Additionally, ADMD updated on the status of the AD for the income year 2023. The overall deadline compliance stood at 99.62% from the total covered persons of 25,299, with Schedule I and II achieving 100% and 86% compliance rate respectively.*	**Based on the justification submitted, past compliance to ADR, and assurance from the Executive Director, the Commission approved the waiver of penalties for non-declaration. Instead, Commission decided to levy penalty for late declaration, albeit with caution and under exceptional circumstances.**

Commissioner **Commissioner** **Chairperson**

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